GradeOrbit

Privacy terms and statements | Source archive

Retrieved 10 October 2026

Policy and supporting documents captured

Public documents captured from the competitor website and its linked legal pages. Vendor statements are preserved as published, without independent certification.

About these copies

Web pages are preserved as searchable text snapshots, with their headings and paragraph order retained. Navigation and non-content page elements may be omitted. These are copies of vendor statements, not a GRADIAS assessment of compliance. Source links and any original downloadable files are listed below. Content is retained in its original language.

Sources

01. Privacy Policy

02. DPA for Schools

03. Terms & Conditions

Competitor website

01 | Privacy Policy

https://www.gradeorbit.co.uk/privacy-policy

Webpage text snapshot | Retrieved 10 October 2026

Privacy Policy

Last updated: June 2026

1. Our Commitment to Privacy

At Grade Orbit, we take data privacy seriously. This Privacy Policy explains how we handle your data. We operate two distinct tiers with different postures:

Solo / individual teacher tier: we do not handle student personal data. Student work is redacted in your browser before upload; we are a “Service Provider” under a PII-Free Zone architecture.

School tier: under our Article 28 Data Processing Agreement, which forms part of our Terms, we act as a Processor for the school. The school remains the Controller. We process real student names, uploaded student work, and the outputs of marking and AI-detection checks under the DPA, with strict tenant isolation and explicit retention controls. Where a school chooses to give pupils their own logins, we also process pupil email addresses so those pupils can sign in to view their own marked work. Uploaded work is retained so teachers can return to a student’s results, then deleted automatically once a run’s retention window passes or when the school account is closed. See our Transparency Pack for the full school-tier breakdown.

2. Student Data & PII Protection

The “PII-Free Zone”

On the Solo and Team tiers, our servers are a strictly designated “PII-Free Zone” — we do not ingest, store, or process unredacted student PII.

This applies to the Solo / individual teacher tier described above. The School tier works differently: under our Data Processing Agreement, which forms part of our Terms, schools upload un-redacted student work and we store it (and real student names) as a Processor, governed by the DPA and the retention controls set out in this policy and our Transparency Pack.

For the Solo / individual teacher tier, to ensure compliance with GDPR and UK GDPR:

Client-Side Redaction: All redaction of student names, IDs, and signatures happens entirely within your browser. The unredacted image never leaves your device.

Anonymous Data Transfer: Only anonymous, redacted data is sent to our servers and AI providers (Google Gemini). Students are identified only by generic placeholders (e.g., “Student 1”) or your own local reference systems that we cannot decrypt.

3. Data We Collect

We collect only the minimum data necessary to provide our service to you (the teacher/school):

Account Information: Your email address and encrypted password.

Usage Data: Anonymous statistics about feature usage to help us improve the platform (handled via our Cookie Policy).

Content: The grading criteria, exam board specifications, and reference texts you upload to configure the AI.

Lesson planning content: Schemes of work, lesson ideas, and generated lesson PowerPoints are your own teaching material, not student data. We store them with your account so you can return to them; they are deleted when your account is deleted (for schools: when the school’s account closes). Please don’t include student personal information in them — lesson planning sits outside the redaction flow.

Redacted Student Work (Solo / Team): The anonymous image data and text transcriptions generated after you have performed redaction in your browser.

School Student Work & Results (School tier): For schools on a Data Processing Agreement, the un-redacted student work uploaded for marking or AI-detection, the real student names (and optional nicknames) it is matched to, and everything we generate from it — the transcription of the work, AI and teacher feedback, grades, on-page annotations, and AI-detection results. This is stored as a Processor for the active life of the assessment run and then for the school's chosen retention window, and is deleted automatically once that window passes or when the school account is closed.

School Pupil Logins & Email (School tier): Where a school chooses to give pupils access to their own marked work, we collect each pupil's email address (supplied by the school — typed in or imported from a spreadsheet) and create a login for them. The pupil sets their own password, which is stored only as a securely hashed value — we never see or keep the password itself. We send a pupil two kinds of message: a one-time "set your password" email and a "your result is ready" notification when a teacher shares feedback. Grades and feedback are never included in these emails — they are shown only after the pupil signs in, and a pupil can only ever see their own approved results, never another pupil's. Pupils are never sent marketing of any kind. A pupil can also ask questions about their own approved result — those questions, and the result being discussed, are sent to our AI provider to generate a reply, retained for up to 30 days under Operational Logs below, and never used for marketing or to train AI models.

Operational Logs: To maintain and improve service quality, GradeOrbit temporarily stores the mark schemes you provide and the AI-generated outputs (grades, feedback, and transcriptions) for each marking session. This data is retained for up to 30 days and is used solely for debugging and service improvement. No student images are stored in these logs. This data is accessible only to GradeOrbit staff.

Team Membership & Usage (Teams only): Where you join a Team, the Team Owner can see the email address of every member of their team and per-member credit usage statistics (credits consumed, marking and AI-detection counts, and a recent transaction history). Team Owners cannot see the content of any student work or AI outputs — only aggregate usage figures. Each team's data is isolated from other teams via database row-level security.

3a. Marketing Emails

Marketing emails — product updates, tips, and activity-based reminders — are sent only to users who have explicitly opted in. You can choose to opt in at signup, and you can change your choice at any time from Account → Email Preferences. Not opting in does not affect transactional emails such as welcome messages, password resets, or billing notifications — we still need to send those to operate the service.

4. Your Roles & Responsibilities

In every tier, you (the teacher or the school) are the Data Controller and are responsible for having a lawful basis to process student work. Our role depends on your tier:

Solo / Team: Grade Orbit acts as a Service Provider. Because student work is redacted in your browser before it reaches us, we provide the tools to process data but do not see or hold the underlying student personal data.

School: Under our Data Processing Agreement, which forms part of our Terms, Grade Orbit acts as your Data Processor. The school remains the Controller; we process real student names, student work, pupil email addresses, and the results strictly on the school's documented instructions and only for the purposes set out in the DPA.

If you have questions about our privacy practices, please contact us at george@gradeorbit.co.uk

03 | Terms & Conditions

https://www.gradeorbit.co.uk/terms

Webpage text snapshot | Retrieved 10 October 2026

Terms and Conditions

Last updated: October 2026

1. Introduction

Welcome to Grade Orbit. These Terms and Conditions govern your use of the Grade Orbit specific feedback generation service. By creating an account or using our service, you agree to depend on these terms. If you do not agree, strictly do not use Grade Orbit.

2. Data Privacy & Your Tier

Crucial Data Distinction:

You (the User or School) are always the Data Controller for student data.

Solo & Team: Grade Orbit is a Service Provider only. Student work is redacted in your browser before upload, so no student PII reaches our servers.

School: under our Article 28 Data Processing Agreement, which forms part of these Terms, Grade Orbit acts as your Data Processor and does receive and store student PII on your instructions.

Solo and Team tiers operate as a “PII-Free Zone” on the server side: you act as the Data Controller, and Grade Orbit provides the processing tools without receiving student PII, because redaction happens in your browser first.

School tier is the deliberate exception. A school’s use of Grade Orbit is governed by our Data Processing Agreement (version v1), which is incorporated into and forms part of these Terms — there is no separate document to sign. Under it, you upload un-redacted student work and Grade Orbit stores it — along with real student names, the marking and AI-detection results, and (where a school gives pupils their own logins) pupil email addresses — acting as your Data Processor. The school remains the Data Controller; we process this data only on the school’s documented instructions and the retention rules described in our Privacy Policy and Transparency Pack. The sub-processors we engage are listed at gradeorbit.co.uk/sub-processors, which is incorporated into the Data Processing Agreement by reference and kept current. If there is any conflict between these Terms and the Data Processing Agreement in respect of student personal data, the Data Processing Agreement prevails.

3. Upload Obligations by Tier

Your obligations when uploading or scanning work depend on the tier you are using.

Solo & Team

When using the Solo or Team tiers, you strictly agree to the following when using Grade Orbit's upload or scanning features:

You must ensure that ALL Student PII (names, IDs, handwritten signatures, school badges) is fully redacted from any images or documents BEFORE they are uploaded to our servers.

You must use the Client-Side Redaction tools provided within the application to “burn in” redactions locally in your browser.

You represent and warrant that you will not circumvent client-side checks to upload unredacted data.

School

The School tier deliberately works the other way: there is no redaction step, and you upload student work as scanned under the Data Processing Agreement that forms part of these Terms. When using the School tier you instead agree that:

The Data Processing Agreement that forms part of these Terms applies between your school and Grade Orbit, and you are authorised by the school to upload student work under it.

The school, as Data Controller, has a lawful basis to process the student work and any pupil contact details (such as email addresses) it provides, and has met any notice or consent obligations owed to students or their parents/guardians.

You will enter only the personal data needed for marking and matching work to the right pupil (names, optional nicknames, and an optional pupil email). You will not enter special-category data — such as health, safeguarding, or SEN information — into any notes or free-text field.

4. AI Grading Disclaimer

Grade Orbit uses advanced artificial intelligence (Google Gemini models) to analyze student work. While we strive for high accuracy, AI models can produce hallucinations or errors.

The teacher remains the final arbiter of all grades. Grade Orbit is an assistive tool designed to speed up your workflow, not to replace your professional judgment. You agree to review AI-generated marks and feedback before finalizing them for students.

Grade Orbit's ready-made mark schemes are our own guidance, written to match the marks and assessment objectives published in exam board specifications. They are not official exam board material, and Grade Orbit is not affiliated with or endorsed by any exam board. Check them against your board's own mark scheme before relying on them.

5. UK-Only Service Restriction

Geographic Restriction:

Grade Orbit is exclusively designed for and available to educators based in the United Kingdom.

By creating an account, you confirm that:

You are currently based in the United Kingdom.

You are using the service in connection with UK educational institutions or curricula.

You understand that our grading criteria, exam board support (AQA, Edexcel, OCR, Eduqas, WJEC), and curriculum alignment are specifically tailored for UK qualifications (GCSE, A-Level, KS3).

This restriction exists because Grade Orbit's AI models, marking criteria, and feedback systems are specifically trained and optimized for UK educational standards. Using the service from outside the UK may result in inaccurate or inappropriate grading suggestions.

6. Credits, Purchases & Refunds

Grade Orbit operates on a prepaid credit system. Credits are purchased in advance and consumed when you use AI marking, feedback generation, or lesson PowerPoint generation.

Automatic refunds on failure: If a marking job fails due to a service or technical error, any credits deducted for that job are automatically returned to your account. You do not need to request this.

No refunds for completed jobs: Credits consumed by a successfully completed marking or feedback job are non-refundable, even if you disagree with the AI output. You remain responsible for reviewing and approving all AI-generated results before use.

No cash value: Credits have no monetary value and cannot be transferred, sold, or refunded for cash except where required by applicable UK consumer law.

Referral credits: Individual and student accounts may earn credits by referring someone who creates their own account and marks a piece of work. Referral credits are a discretionary reward, not a purchase: they carry no cash value and may be withheld or reversed where we reasonably believe a referral is not genuine — for example accounts created by or for the same person, automated or bulk sign-ups, or accounts created solely to trigger a reward. We may also limit how many referrals one account can be paid for in a given period, and may withdraw the scheme at any time. Credits already earned in good faith are unaffected.

Pricing changes: Grade Orbit reserves the right to change pricing at any time. For active subscription plans (individual and School), we will provide at least 30 days' notice of any price increase via email or in-app notification. Existing credits retain their full value regardless of any subsequent price changes.

Teams — shared credit pools: Teams are no longer available to buy, and a team pool cannot be topped up. For an existing team, the Team Owner is the account holder. When a member accepts a team invite, any personal credits they hold are irrevocably moved into the shared team pool and become property of the team; they will not be returned to the member if the member later leaves or is removed. If a Team Owner dissolves the team, any remaining credits in the team pool are returned only to the Owner's personal balance.

Overage — how you are charged: When overage is enabled, operations beyond your plan allowance are charged to the payment card saved on file. On individual (solo) plans, overage is metered: the operations used beyond the plan in a calendar month are added up and charged on a single Stripe-hosted invoice at the end of that month — at a flat 20p per credit. We email a receipt and a Stripe-hosted invoice for every overage charge. You may disable overage at any time from your billing settings; the change takes immediate effect. For your protection, we will automatically disable overage if your card is declined, if your bank rejects two consecutive authentication challenges, or if a charge is disputed via your card issuer (in which case any credits delivered by that charge are also revoked). Overage requires a card on file and is not available with Bacs Direct Debit. School accounts do not use overage — see "Schools & Institutional Terms" below.

Your monthly overage limit: When you turn overage on you set a monthly spending limit, which defaults to £10. Once your overage spending in a calendar month reaches that limit, further operations are refused until you raise the limit or the month resets — and we will never invoice you more than your limit for overage in any calendar month. You may raise or lower the limit at any time, but not below what you have already used in the current month. You may also choose to set no limit, in which case you are charged for everything you use.

Schools & Institutional accounts: School accounts do not use the prepaid credit system described above. A School account is instead a per-teacher-seat annual licence: you pay for a chosen number of seats, in full, in advance, for a 12-month term, and every teacher seat may mark and use AI detection without limit for that term. Full details of the seat licence, term, renewal, seat changes, and cancellation are set out in the "Schools & Institutional Terms" section below.

For queries about your credit balance or a specific transaction, please contact us at george@gradeorbit.co.uk.

7. Subscriptions & Recurring Billing

Some of our plans are subscriptions that renew automatically until you cancel. This section explains how those subscriptions, the credits they include, and any extra charges work.

Subscription plans: Our individual plans (Basic, Pro and Max) are subscriptions that renew automatically — monthly or annually — until you cancel. All prices are shown inclusive of VAT.

What a credit is: One credit covers one full AI operation: a marked paper (including its suggested improvements). Follow-on suggestions are part of that same operation and are not charged separately. A generated lesson PowerPoint uses two credits; creating and editing a scheme of work is free.

Annual billing: Annual plans are paid in advance and cost two months less than paying monthly — you pay ten months' price for twelve months' access. If you upgrade part-way through a term, you pay the prorated difference straight away; if you downgrade, the change takes effect at your next billing date.

Cancelling: You can cancel at any time. Cancellation takes effect at the end of your current billing period, and part-months are not refunded. After you cancel you keep access to the app and to any credits you have already purchased; only your subscription allowance stops, so marking continues until your remaining credits run out. Because this is digital content you can start using immediately, your statutory 14-day cancellation right is waived once you begin using the paid service.

Overage (optional, off by default): Overage is switched off unless you turn it on. If you enable it, operations beyond your plan allowance are still served, up to the monthly spending limit you set. On individual plans these are metered and billed once at the end of each calendar month — at a flat 20p per credit. School accounts do not use overage — a School licence covers unlimited marking for every seat for the full term.

Allowance and expiry: Your subscription allowance is granted at the start of each billing cycle. We reserve the right to introduce a 12-month inactivity expiry on unused credits in future, and would give you at least 30 days' notice before doing so.

Price changes: We will give you at least 30 days' notice of any change to your subscription price, and you are free to cancel before the new price takes effect.

Teams: Teams are no longer available to buy. In an existing team, the team owner is the account holder, and team members draw from the team's shared credit pool, which cannot be topped up. When you join a team, any personal credits you hold are moved into the shared pool — this cannot be undone. If a team is later dissolved, any credits remaining in the pool return to the owner.

Existing balances: Any credits you already hold are honoured and stay usable without a subscription until they run out.

Payment is processed by Stripe. We store a payment card so we can take your renewal payments and, if you have enabled overage, any overage charges.

8. Schools & Institutional Terms

This section applies only to School accounts and takes precedence over Sections 6 and 7 above wherever the two conflict. A School account does not use the prepaid credit system: it is a per-seat annual licence.

Seat licence grant: A School subscription grants a fixed number of teacher seats, each entitled to unlimited AI marking and AI detection for the licence term. A seat may be reassigned freely between teachers at no charge; the number of paid seats is what is licensed, not any named individual.

Annual term, paid in advance: A School licence runs for a 12-month term, charged in full at the start of that term (or on a scheduled future start date you choose at sign-up — see "Scheduled start" below). We do not offer monthly School billing.

Auto-renewal: Your School licence renews automatically for a further 12-month term at the then-current seat count and price, unless you cancel before the renewal date. We will give you at least 30 days' notice of any price change taking effect at your next renewal.

Founding rate: Where a founding rate is offered, it applies to your first 12-month term only. It covers every seat on your licence for that term, including seats you add part-way through it. Your licence then renews automatically at our standard seat price, with at least 30 days' notice as set out above.

Cancellation — no refund for the current term: You may cancel at any time; cancellation takes effect at the end of your current paid term (auto-renewal simply does not fire), and access continues until then. We do not refund any part of a term you have already paid for.

Adding seats: You may add seats at any time; the prorated cost for the remainder of the current term is charged immediately and the new seats are available as soon as payment succeeds.

Reducing seats: You may reduce your paid seat count at any time; the reduction takes effect at your next renewal and is not refunded for the term already paid.

Scheduled start: You may choose a future start date for your licence to fit your budget cycle. Before that date, you have full access to set up rosters, classes and marking criteria, but AI marking and AI detection remain locked until the start date, when payment is taken automatically.

Payment failure — no grace period: If a payment fails (including a renewal or a scheduled-start charge), access to AI marking and AI detection is suspended immediately for the whole school; existing results and data remain readable. Access resumes automatically as soon as payment succeeds.

Fair use: Seats are licensed for normal classroom marking and detection use by the school's own teaching staff. We reserve the right to contact you about, and ultimately to suspend or decline to renew, an account whose usage is so far outside normal classroom patterns that it indicates abuse, resale, or use on behalf of an unrelated organisation.

Conversion discount: If your School was created by converting an existing individual or Team account, any unused credits on that account are valued at a flat rate and applied as a one-time discount against your first annual School invoice. Any value in excess of that invoice is not carried forward or refunded.

Billing contact: The billing administrator identified at sign-up (or their successor, transferred within the school's account settings) is the sole contracting party for the School subscription and is responsible for payment.

Data Processing Agreement: Our Data Processing Agreement forms part of these Terms for School accounts. On a material update to the Data Processing Agreement, continued use of the service is conditional on the updated terms.

For School billing queries, please contact us at george@gradeorbit.co.uk.

9. Limitation of Liability

Important:

Grade Orbit is an assistive tool. Professional responsibility for all marks, feedback, and academic decisions rests entirely with you as the teacher.

To the fullest extent permitted by applicable law:

Grade Orbit's total liability to you arising out of or in connection with these terms or your use of the service shall not exceed the total amount you have paid to us in the twelve months preceding the event giving rise to the claim.

Grade Orbit is not liable for any indirect, consequential, or special losses, including but not limited to loss of earnings, professional consequences, reputational damage, or losses arising from reliance on AI-generated marks or feedback.

Nothing in these terms excludes or limits our liability for fraud, fraudulent misrepresentation, death or personal injury caused by our negligence, or any other liability that cannot be excluded or limited under the laws of England and Wales.

10. Service Availability

Grade Orbit is provided on an “as available” basis. We do not guarantee uninterrupted or error-free access to the service.

AI processing relies on third-party providers, including Google Gemini. Outages or degraded performance at those providers may temporarily affect the service. We have no control over third-party availability.

Credits will not be charged for marking or feedback jobs that fail due to service unavailability. Any credits deducted for a failed job are automatically refunded to your account.

We will endeavour to provide reasonable notice of planned maintenance where practicable, but cannot guarantee advance notice in all cases.

11. Governing Law & Disputes

These Terms and Conditions and any dispute or claim arising out of or in connection with them (including non-contractual disputes or claims) are governed by and construed in accordance with the laws of England and Wales.

Both parties agree to submit to the exclusive jurisdiction of the courts of England and Wales to resolve any legal dispute or claim arising out of these terms.

Before commencing formal proceedings, we encourage you to contact us first at george@gradeorbit.co.uk so we can attempt to resolve the matter informally.

If you have questions about these terms, please contact us at george@gradeorbit.co.uk

02 | DPA for Schools

https://www.gradeorbit.co.uk/dpa

This original downloadable document is appended after the text snapshot sections. An individual copy is saved in the Original documents subfolder.

Last Updated: 23 June 2026

This Data Processing Addendum ("**DPA**") sets out how Grade Orbit processes Personal Data on behalf of the User pursuant to Grade Orbit's Service T&Cs [link].

DEFINITIONS

For the purposes of this DPA, the following terms: "**Controller**", "**Data Subject**", ""**Data Subject**", "**Personal Data**", "**Personal Data Breach**", "**processing**", "**Processor**" and "**Sub-Processor**" shall have the meanings given to them at Article 4 of the GDPR. The following terms shall have the meanings:

User	Has the same meaning as set out in the Service T&Cs
Applicable Privacy Laws	All applicable data protection and privacy legislation in force from time to time in the UK including without limitation the UK GDPR; the Data Protection Act 2018 (and regulations made thereunder) (**DPA 2018**); the General Data Protection Regulation ((EU) 2016/679) to the extent applicable in the UK (**GDPR**) and the Privacy and Electronic Communications Regulations 2003 (SI 2003/2426) as amended; and all other legislation and regulatory requirements in force from time to time which apply to a party relating to the use of personal data (including, without limitation, the privacy of electronic communications); and the guidance and codes of practice issued by the Information Commissioner (**ICO**) or other relevant regulatory authority and which are applicable to a party (**Supervisory Authority**).
Service	Means the Grade Orbit specific feedback generation service.
Service T&Cs	Means the terms and conditions applicable to the use of the Service by all users, available at: https://www.gradeorbit.co.uk/terms.
Student Personal Data	Means the Personal Data which is collected and/or otherwise processed by Grade Orbit in its capacity as Processor on behalf of the User (acting as Controller) in respect of Students as contemplated by the Service T&Cs.
User Personal Data	Means the Personal Data of a User (as defined in the Service T&Cs) which is collected by Grade Orbit as part of that User signing up for an account on the Service.

Any other defined terms in this DPA shall have the meaning as given in the Service T&Cs.

The terms of this DPA are hereby incorporated into the Service T&Cs. In the event of a conflict between the Service T&Cs and this DPA, the terms and conditions of this DPA shall prevail.

1 **Scope of this DPA**

For the purposes of this DPA and the Service T&Cs, the parties acknowledge and agree that:

(a) This DPA does not apply to any data which does not, by itself, contain any information that would allow for the identification of an individual and therefore shall not constitute Personal Data under the Applicable Privacy Laws.

(b) **Independent Controllers**. This DPA does not apply to the Parties' respective obligations as independent Controllers of Personal Data. Grade Orbit and the User operate as separate (and not joint) Controllers in respect to the Personal Data either Party may independently process in connection with the Service or otherwise. Accordingly:

(i) Grade Orbit shall be deemed a separate Controller for any Personal Data (i) it collects to provide the Service, including regarding the User and its staff or User Personal Data; and

(ii) The User shall be deemed a separate Controller for Personal Data related to any Students which is not collected by the Service; and

(iii) The parties hereby undertake to respect applicable laws which apply to them as separate Controllers and to be liable separately for their own controllership obligations and responsibilities when acting as separate Controllers.

2 **Roles of the parties**

The parties agree that this DPA shall only apply to processing activities whereby the User acts as Controller and Grade Orbit acts as Processor in respect of Student Personal Data collected and processed by Grade Orbit at the request of the User. For the avoidance of doubt, the DPA shall only apply to data processing performed by Grade Orbit as part of the Service.

Nothing in this DPA relieves either party of any of their respective responsibilities or liabilities under the Applicable Privacy Laws.

3 **User's compliance with Applicable Privacy Laws.**

When acting as Controller, the User shall at all times comply with all Applicable Privacy Laws. The User shall ensure all instructions given by it to Grade Orbit in respect of Student Personal Data (including the terms of this DPA) shall at all times be in accordance with Applicable Privacy Laws. The User shall be solely responsible for ensuring that it has obtained all applicable consents and has provided all advance notice and information of the processing contemplated hereunder to any Data Subjects, as required of it under Applicable Privacy Laws.

4 **Grade Orbit's compliance with Applicable Privacy Laws.**

Grade Orbit shall process Student Personal Data in compliance with the obligations placed on it under Applicable Privacy Laws and the terms of this DPA.

5 **INSTRUCTIONS**

Grade Orbit shall only process (and shall ensure that its personnel and Sub-Processors only process) the Student Personal Data in accordance with the User's instructions set out at Part A of this DPA and the terms of this DPA, except to the extent: (i) that alternative processing instructions are agreed between the parties in writing; or (ii) otherwise required by Applicable Privacy Laws (in which case, Grade Orbit shall inform User of that legal requirement before processing, unless applicable law prevents it doing so on important grounds of public interest). If Grade Orbit believes that any instruction received by it from the User is likely to infringe the Applicable Privacy Laws, it shall be entitled to cease to provide the functionality of collecting and storing

Student Personal Data on the Service, without liability, until the parties have agreed appropriate amended instructions which are not infringing.

6 Security

To protect the Student Personal Data against accidental, unauthorised or unlawful destruction, loss, alteration, disclosure or access, the parties shall implement and maintain the technical and organisational measures asset out in Part B of this DPA.

7 Sub-processing

(a) Grade Orbit's current list of Sub-Processors is set forth in Part C, which Grade Orbit may update in its discretion from time to time. The User may request an up-to-date list of Sub-Processors at any time acting reasonably. User may reasonably object to Grade Orbit's replacement of a Sub-Processor or use of a new Sub-Processor by notifying Grade Orbit promptly in writing, and in any case, within ten (10) Business Days after provision by Grade Orbit of its updated list. User shall provide reasonable grounds for its objection, which must relate to compliance with Applicable Privacy Laws. In the event User fails to object in the foregoing timeframe, such Sub-Processor(s) shall be deemed to be accepted by User and added to Part C.

(b) In the event User reasonably objects to the replacement or use of new Sub-Processor(s), as permitted in Section 7(a), Grade Orbit will use commercially reasonable efforts to make available to User a change in the Service or recommend a commercially reasonable change to User's configuration or use of the Service to avoid processing of Student Personal Data by the objected-to replacement or new Sub-Processor(s). If Grade Orbit does not or is unable to make available such change within a reasonable time frame, User may terminate the applicable part of the Service which cannot be provided by Grade Orbit without the use of the objected-to replacement or new Sub-Processor(s), upon providing thirty (30) Business Days written notice to Grade Orbit. Termination of affected Service by User shall be deemed a termination for convenience by User and shall not impact User's payment obligations under the Service T&Cs and/or applicable Order Forms.

(c) Prior to the relevant Sub-Processor(s) carrying out any processing activities in respect of the Student Personal Data, Grade Orbit shall ensure that each such Sub-Processor(s) is bound by a written contract containing materially the same obligations as under this DPA that is enforceable by Grade Orbit. Grade Orbit shall: (i) remain fully liable to the User under this DPA for all the acts and omissions of each Sub-Processor as if they were its own (but not to a greater extent than that); and (ii) ensure that all persons authorised by Grade Orbit (including Grade Orbit's personnel) or any Sub-Processor to process Student Personal Data are subject to a binding written contractual obligation to keep the Student Personal Data confidential.

8 Data Subjects Rights

(a) Grade Orbit shall (at the User's cost) assist the User in ensuring compliance with the User's obligations pursuant to Articles 32 to 36 of the GDPR (and any similar obligations under the Applicable Privacy Laws) taking into account the nature of the processing and the information available to the User. Taking into account the nature of the processing, the parties shall (at the User's cost) assist the User by implementing appropriate technical and organisational measures, insofar as this is possible, for the fulfilment of the User's obligations to respond to requests for exercising the Data Subjects' rights under Chapter III of the GDPR (and any similar obligations under Applicable Privacy Laws) in respect of any Student Personal Data as this relates to such data.

(b) Grade Orbit shall promptly notify the User of the Student Personal Data if

it receives a request from a Data Subject under any Data Protection Law in respect of either Student Personal Data and ensure that it does not respond to that request except on the documented instructions of the Controller of the relevant data or as required by applicable laws.

9 International transfers

The User agrees that Grade Orbit may transfer Student Personal Data to various locations in connection with providing the Service, including to Sub-Processors outside of the United Kingdom. Such transfers will be made in accordance with the Applicable Privacy Laws.

10 Audits and processing

Each party shall, in accordance with Applicable Privacy Laws, make available to the other party such information that is in its possession or control as is necessary to demonstrate their compliance with the obligations placed on it under this DPA and to demonstrate compliance with the obligations on each party imposed by Article 28 of the GDPR (and under any equivalent Applicable Privacy Laws equivalent to that Article 28) for any Personal Data, and allow for and contribute to audits, including inspections, for this purpose (subject to a maximum of one audit request in any 12-month period, and provided that such audit is conducted on reasonable notice, during normal business hours in the United Kingdom, and results in minimal disruption, except where the audit relates to or follows a Personal Data Breach).

11 Deletion/Return

(a) Upon termination of provision of the Service under the Service T&Cs, at the User's cost and the User's option, Grade Orbit shall either return the Student Personal Data to the User or securely dispose of such Student Personal Data except to the extent that any applicable law requires Grade Orbit to store such Student Personal Data. Grade Orbit shall not be required to retain any Student Personal Data for longer than thirty (30) Business Days following termination of expiry of the Service T&Cs. In the absence of the User requesting the return of its Student Personal Data within this timeframe, Grade Orbit shall be entitled to delete such Student Personal Data as it sees fit.

(b) Notwithstanding the foregoing Section 12(a), Grade Orbit shall not be obligated to delete any data which has since become integrated to the Service or Grade Orbit's own database during or after the term of the Service T&Cs (including any User Data), such data either not being Personal Data to the extent that it has been anonymised and aggregated so no Data Subject is personally identifiable and such data cannot be attributed to the User or any Data Subject), or Grade Orbit becoming Controller of such data (it being User Personal Data and not Student Personal Data), and thus being responsible for its own compliance with Applicable Privacy Laws in respect of such datasets, in accordance with Section 1(3) above and Grade Orbit's own Controller obligations.

12 Liability

Grade Orbit shall only be liable for their own breach of the Applicable Privacy Laws or of this DPA and shall not be jointly and/or severally liable for the User's breach. Accordingly, the User agrees to hold Grade Orbit harmless and to indemnify Grade Orbit for any losses incurred due to the breach of the Applicable Privacy Laws arising out of or in connection with a Grade Orbit's processing activity of Student Personal Data as contemplated in Section 13, except where such liability arises solely due to Grade Orbit's breach of this DPA. In all cases, Grade Orbit's liability to the User for any breach of this DPA or the Applicable Privacy Laws shall be subject to the cap on liability contained in the Service T&Cs.

13 General Terms.

(a) **Confidentiality**. The confidentiality provisions in the Service T&Cs shall

apply to all information and data contemplated under this DPA.

(b) **Notices**. All notices and communications given under this DPA must be in writing and will be delivered personally, sent by post or by email to the address or email as set out in the Service T&Cs.

(c) **Governing Law and Jurisdiction**. This DPA is governed by the laws of England and Wales. Any dispute arising in connection with this DPA, which the Parties will not be able to resolve amicably, will be submitted to the exclusive jurisdiction of the courts of England and Wales.

Part A **Processing Activities by Grade Orbit**

Processing of the Student Personal Data by Grade Orbit under this DPA and the Service T&Cs, shall be for the subject-matter, duration, nature and purposes and involve the types of Personal Data and categories of Data Subjects set out in this Part A.

Duration of the processing	For the duration of the Service T&Cs, and as long as Grade Orbit has Student Personal Data in its possession (whichever is later).
Nature and purpose of the processing	Grade Orbit will permit the User to submit Personal Data of Students contained within uploaded assignments or coursework. This enables Grade Orbit to provide the Service to the User and allows the processing of Student Personal Data for the purpose of automated AI marking, assessment, and detection.
Type of Personal Data	Name, Email address, Grades of students, Year groups and classes of students.
Categories of Data Subjects	Students (as defined in the Service T&Cs).

Part B **Minimum technical and organisational security measures**

In accordance with Applicable Privacy Laws, taking into account the state of the art, the costs of implementation and the nature, scope, context and purposes of the processing of the Student Personal Data to be carried out under or in connection with this Service T&Cs, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons and the risks that are presented by the processing, especially from accidental or unlawful destruction, loss, alteration, unauthorised disclosure of, or access to the Student Personal Data transmitted, stored or otherwise processed, the parties shall implement appropriate technical and organisational security measures appropriate to the risk, including, as appropriate, those matters mentioned in Articles 32(1)(a) to 32(1)(d) (inclusive) of the GDPR, to Student Personal Data.

Part C **Grade Orbit's appointed Sub-Processors**

Sub-Processor	**Processing Activity**	**Location (inside or outside of the UK or EEA)**	**Compliance URL**	**International Transfer Mechanism**
Supabase	Authentication, primary database, file storage	EU (Frankfurt) — operated by Supabase Inc., US	https://supabase.com/privacy	UK IDTA + EU SCCs

Sub-Processor	Processing Activity	Location (inside or outside of the UK or EEA)	Compliance URL	International Transfer Mechanism
Google Gemini	AI marking, AI detection, transcription, suggested improvements	US — Google LLC	https://support.google.com/gemini/answer/13594961?hl=en-GB	UK IDTA + EU SCCs, no-training contractual stance
Google Cloud Vision	OCR for Student Work, marking criteria, and reference text uploads.	US — Google LLC	https://cloud.google.com/privacy	UK IDTA + EU SCCs
Resend	Transactional and product email delivery	US — Resend Inc.	https://resend.com/legal/privacy-policy	UK IDTA + EU SCCs
Stripe	Payment processing for credit purchases and subscriptions	US / Ireland — Stripe Payments Europe Ltd.	https://stripe.com/gb/privacy	UK IDTA + EU SCCs (Stripe acts as an independent controller for payment data)
Sentry	Error monitoring and crash reporting	US — Functional Software, Inc.	https://sentry.io/privacy/	UK IDTA + EU SCCs
Vercel	Application hosting, edge runtime, cron, geo-IP	US — Vercel Inc.	https://vercel.com/legal/privacy-notice	UK IDTA + EU SCCs